

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No.

EDWARD JOHN NOSEWICZ,

Plaintiff,

vs.

DEPUTY J. JANOSCO,

Defendant.

PLAINTIFF'S ORIGINAL COMPLAINT AND JURY DEMAND

Now comes the Plaintiff, Edward John Nosewicz, by and through his attorneys, Brice A. Tondre and John L. Springer, and for his complaint against the Defendant named hereinafter states:

PARTIES

1. Plaintiff, Edward John Nosewicz, is an individual resident of Thornton, Colorado.
2. Defendant Deputy J. Janosco was at all relevant times a deputy sheriff, employed by the Adams County Colorado Sheriff's Office as a jailer.

JURISDICTION

3. This Court has jurisdiction of this matter pursuant to 28 U.S.C. §1343(a)(3) in that the cause of action alleged herein arises under the laws and constitution of the United States.

FACTS

4. On December 5, 2014, Thornton Police Officers Kavalek and Blevins arrested Plaintiff at his home and took him to the Thornton Police Department for processing and

booking. Before they left Plaintiff's home, Plaintiff's wife informed the arresting officers that Plaintiff needed oxygen and medication. They told her that the medical personnel at the jail would take care of his medical needs.

5. After being booked and processed Plaintiff was transported to the Adams County jail.

6. Between 1:00 and 2:00 p.m. on December 5, 2014, Plaintiff called his wife from the jail and informed her that he had not been provided with any oxygen. He called her again at approximately 5:00 p.m. that day and informed her that he still had not been provided with oxygen.

7. After this second call, Plaintiff's wife called the jail and informed Sgt. Hannah that Plaintiff was supposed to be on continuous oxygen. She was placed on hold and someone came on the line and said "we will take care of it."

8. After this call from Plaintiff's wife the medical staff contacted Plaintiff's physician and a pharmacy to determine what medicine Plaintiff needed and the extent to which he needed oxygen. The medical staff also interviewed Plaintiff and learned that he had a stent in the right side of his heart which had been totally blocked and that he had a continuous need for oxygen.

9. At about 7:52 p.m., Plaintiff knocked on his cell door and called out loudly for help from Defendant. Plaintiff told Defendant that he wanted a nurse to bring him his medicine and oxygen. Defendant told Plaintiff to stop demanding things from deputies and yelling in his cell. Defendant did not contact medical to determine when Plaintiff could expect oxygen and his medicines.

10. At about 4:10 a.m. on December 6, 2014, Plaintiff began calling loudly for a nurse. Defendant responded that a nurse would be through for morning medication pass later in the day.

Plaintiff responded that he could not hear Defendant but that he needed a nurse. Defendant then left the intake deputy's desk, approached Plaintiff's cell and asked the tower deputy to open the door to Plaintiff's cell so he could check on him.

11. When the door was opened Defendant asked Plaintiff why he needed a nurse. Plaintiff told Defendant he needed his heart medications. He informed Defendant that he had awakened in a cold sweat. Defendant said he would call medical and ask if they could see him, failing which he would have to file a kite. This frustrated Plaintiff since he had been waiting for his medicine too long and he expressed his displeasure and fears to Defendant. Defendant responded that Plaintiff was causing a disturbance, grabbed Plaintiff in a choke hold, swung him around causing his head to be slammed into the door jam, pummeled his ribs with his fist, threw him to the floor, causing a laceration to his left elbow and, when he was on the floor, kicked him in the ribs, all of which caused Plaintiff great fear and anxiety, putting in fear that he was suffering a heart attack and breaking two ribs.

12. Plaintiff was making a legitimate call for medical care. No use of force was justified. As a result of the excessive use of force, Plaintiff suffered severe physical and emotional pain and suffering, broken and injured ribs, a lacerated elbow, a blow to the head and a heart attack.

CLAIM FOR RELIEF

13. At all times relevant to the claim asserted herein, Defendant was acting under color of State law.

14. Defendant was deliberately indifferent to Plaintiff's serious medical needs in violation of his rights under the Fourteenth Amendment of the United States Constitution and his use of excessive force was a violation of the Fourth Amendment to the United States

Constitution.

15. Pursuant to 42 U.S.C. §1983, Plaintiff is entitled to recover damages caused by the violation of his Fourth and Fourteenth Amendments to the United States Constitution. Pursuant to 42 U.S.C. §1988 Plaintiff is entitled to recover his attorney's fees and costs incurred in prosecution of this action.

16. The conduct of Defendant caused Plaintiff to suffer severe physical and emotional injury, pain and suffering, fear and anxiety, past and future and to incur medical expenses.

17. The conduct of Defendant was in callous and reckless indifference to Plaintiff's federally protected rights, justifying the award of punitive damages.

WHEREFORE, Plaintiff prays that the Defendant be cited to appear and answer herein and that upon trial of this matter Plaintiff be awarded judgment for the damages found by the trier of fact, both compensatory and punitive, that he be awarded his attorney's fees and costs incurred in prosecuting this action, pre and post judgment interest allowed by law and that he be granted such other and further relief as the Court deems appropriate in the circumstances.

**PLAINTIFF DEMANDS TRIAL TO A JURY GUARANTEED BY THE
CONSTITUTION OF THE UNITED STATES AND PRESERVED BY RULE 38 F.R.C.P.**

/s/ Brice A. Tondre

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